

ERICKSON, Circuit Judge.

Minnesota RFL Republican Farmer Labor Caucus, Vincent Beaudette, Vince for Statehouse Committee, Don Evanson, Bonn Clayton, and Michelle MacDonald (“the RFL parties”) brought this pre-enforcement challenge against Hennepin County attorney Mary Moriarty, Dakota County attorney Kathryn Keena, Carver County attorney Mark Metz, and Winona County attorney Karin L. Sonneman (“the county attorneys”)¹ to enjoin Minnesota’s Fair Campaign Practices Act as violative of the First Amendment. The Minnesota Attorney General intervened to defend the constitutionality of the statute.

In a prior appeal, the Court affirmed the district court’s denial of the RFL parties’ motion for preliminary injunction, finding *Ex parte Young* inapplicable because the county attorneys had neither enforced nor threatened to enforce the statute. Minn. RFL Republican Farmer Labor Caucus v. Freeman, 33 F.4th 985, 992 (8th Cir. 2022), cert. denied sub nom. Christian Action League of Minn. v. Freeman, 143 S. Ct. 304 (2022) (“Minn. RFL I”). In this appeal, the RFL parties challenge the district court’s² grant of the county attorneys’ motion for summary judgment, denial of their motion for partial summary judgment, and dismissal of their complaint. The Court’s prior decision constitutes the law of the case. We affirm.

I. BACKGROUND

The RFL parties are political candidates, associations, and individuals engaged in political activities who allege that § 211B.02 of Minnesota’s Fair Campaign Practices Act³ violates the First Amendment by chilling their political

¹Moriarty and Keena were substituted as parties under Federal Rule of Civil Procedure 25(d) upon assuming office in January 2023 and May 2021, respectively.

²The Honorable Eric C. Tostrud, United States District Court for the District of Minnesota.

³The statute prohibits a person or candidate from knowingly making a false claim of endorsement or making a claim of endorsement in written campaign materials without first getting written permission from the alleged endorser.